

Board of Ethics Administrative Record



Matter Number: 1412MU14
*Administrative Enforcement
Proceeding*

Executive Director

v.

Tracey Gordon

Enforcement Proceeding Information

Hearing officer: Richard Glazer

Date opened: December 11, 2014

Date closed: May 24, 2016

Executive Director

Name: J. Shane Creamer, Jr.

Counsel of record: J. Shane Creamer, Jr., Michael J. Cooke, Jordan E. Segall

Respondent Information

Respondent name: Tracey Gordon

City role or title: Deputy City Commissioner

Counsel of record: Michael Coard (withdrew Feb. 2, 2015), Rania Major (withdrew July 16, 2015)

Alleged Violations

Regulation/Statute:	Brief Description:	Hearing Status:	Disposition:	Penalty:
Charter § 10-105	Prohibited gratuity	Hearing held	Finding of violation	\$300
Charter § 10-105	Prohibited gratuity	Hearing held	Finding of violation	\$300
Charter § 10-105	Prohibited gratuity	Hearing held	Finding of violation	\$300

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Additional materials:

General Counsel notes:

Last updated: 5/5/2026

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Alleged Violations Continued

Regulation/Statute:	Brief Description:	Hearing Status:	Disposition:	Penalty:
Charter § 10-107(4)	Prohibited political activity	Hearing held	Finding of violation	\$300
Code § 20-606(2)	Failure to cooperate with Board investigation	Hearing held	Finding of violation	\$1,000
Charter § 10-107(4)	Prohibited political activity	Hearing held	Dismissed	N/A
Charter § 10-107(3)	Prohibited political activity	Hearing held	Finding of violation	\$1

Docket of Filings - Matter #1412MU14

Docket #	Date	Description
1	12.11.2014	Notice of Administrative Enforcement Proceeding and Exhibits
2	12.12.2014	Proof of Service of Notice upon Respondent. Response due on or before 02.02.2015
3	12.12.2014	Introduction Letter from General Counsel Staff to Michael Coard
4	12.19.2014	Letter from General Counsel Staff indicating Correct Due Date for Response
5	12.30.2014	Respondent's attorney requests an extension to respond to Notice. Includes Respondent's 12.24 request for a hearing and an extension to respond to the Notice.
6	01.06.2015	Respondent's extension request granted by Board Hearing Officer. Response now due 02.02.2015.
7	02.02.2015	Respondent's Response to the Notice filed by Michael Coard. Michael Coard withdraws as Respondent's attorney in this matter.
8	02.05.2015	Respondent files Supplemental Response to the Notice.
9	02.06.2015	Introduction Letter to Respondent Acknowledging Respondent's Response
10	02.20.2015	Hearing Officer issues subpoenas requested by the Executive Director by email on February 6, 2015. Signed subpoenas and underlying request included.
11	02.24.2015	Notice of Hearing to Parties. Hearing set for 03.30.2015. Deadline for parties to exchange witness and exhibit lists 03.09.2015. Deadline for pre-hearing memoranda 03.16.2015.
12	02.25.2015	Letter to Respondent from General Counsel Staff Enclosing Hearing Notice and Explaining Hearing Procedures
13	03.11.2015	Respondent requests a continuance of the hearing. The Executive Director opposes the request for continuance.
14	03.12.2015	Respondent's request for a continuance granted by Board Hearing Officer. Revised Notice of Hearing sent to the parties. Hearing now scheduled for 06.02.2015. Deadline for exchange of witnesses and exhibits 05.12.2015. Deadline for pre-hearing memoranda 05.19.2015.
15	05.07.2015	Letter to the parties reminding parties of upcoming pre-hearing deadlines.
16	05.18.2015	Rania Major enters her appearance on behalf of Respondent and requests a continuance.
17	05.21.2015	Rania Major's continuance request on behalf of Respondent is granted.
18	05.29.2015	Hearing rescheduled to 08.04.2015. Second Revised Notice of Hearing sent to the parties. Deadline for exchange of witnesses and exhibits 07.03.2015. Deadline to submit pre-hearing memoranda 07.10.2015.
19	07.02.2015	Letter from General Counsel Staff reminding parties of upcoming pre-hearing deadlines.

<u>20</u>	07.10.2015	Executive Director files Unilateral Pre-Hearing Memorandum with the Board and provides corrected exhibit list on 07.13.2015.
<u>21</u>	07.14.2015	Hearing Officer issues subpoenas requested by the Executive Director in the Executive Director's Unilateral Pre-Hearing Memorandum.
<u>22</u>	07.15.2015	Letter to R. Major regarding failure to observe deadlines.
<u>23</u>	07.16.2015	R. Major withdraws as Respondent's counsel. Deadline for Respondent to file pre-hearing memorandum extended to 07.22.2015.
<u>24</u>	07.20.2015	Respondent requests a continuance of the hearing. The Executive Director opposes the request for continuance.
<u>25</u>	07.21.2015	The Board denies Respondent's request for a continuance. Notice of Determination of Request for Continuance sent to the parties. Hearing scheduled for 08.04.2015. Deadline for pre-hearing memorandum from Respondent extended to 07.29.2015.
<u>26</u>	07.30.2015	The Hearing Officer requests that the parties provide exhibits referenced in the Executive Director's Unilateral Pre-Hearing Memorandum at Section V.
<u>27</u>	07.30.2015	The Hearing Officer requests that the Executive Director provides Exhibit 1 referenced in the Executive Director's Unilateral Pre-Hearing Memorandum.
<u>28</u>	07.30.2015	The Executive Director provides exhibits referenced in the Executive Director's Unilateral Pre-Hearing Memorandum at Section V.
<u>29</u>	07.30.2015	The Executive Director provides Exhibit 1 and an explanation to Exhibit 1.
<u>30</u>	08.04.2015	Transcript of Proceeding. Respondent waives right to hearing.
<u>31</u>	08.12.2015	Letter to parties explaining procedures to be followed upon Respondent's waiver of a hearing. Parties may file briefs. Executive Director's Brief in Support of the Notice of Administrative Enforcement Proceeding due on or before 08.26.2015. Respondent's Response Brief due 14 days after service of Executive Director's Brief.
<u>32</u>	08.26.2015	Executive Director files Brief in Support of Notice of Administrative Enforcement Proceeding. Exhibits to Brief are available in hard copy.
<u>33</u>	08.27.2015	Letter to Respondent indicating due date for Response to Executive Director's Brief is 09.09.2015.
<u>34</u>	09.09.2015	Board Chair denies Respondent's extension request Respondent made by telephone on 09.09.2015.
<u>35</u>	11.01.2015	Email from Respondent to Executive Director and General Counsel Staff.
<u>36</u>	05.24.2016	Board issues and mails Final Determination and Order.